

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X **SUMMONS**

GREGORY CANTEY,

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE OFFICER JUSTIN
QUINTERO & POLICE OFFICERS JOHN DOE 1-10
(names being fictitious as true names are currently
unknown),

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Bronx County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
April 30, 2020

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

POLICE OFFICER JUSTIN QUINTERO
48th PRECINCT
450 Cross Bronx Expressway
Bronx, NY 10457

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
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SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF THE BRONX

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GREGORY CANTEY,

Plaintiff,

-against-

CITY OF NEW YORK; POLICE OFFICER JUSTIN

QUINTERO AND POLICE OFFICERS

JOHN DOE 1-10(names being fictitious as true names
are currently unknown),

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VERIFIED COMPLAINT

Jury Trial Demanded

Defendants.

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Plaintiff, GREGORY CANTEY, by his attorney, MASAI I. LORD Esq., alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff GREGORY CANTEY brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York State common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the defendants POLICE OFFICER JUSTIN QUINTERO AND POLICE OFFICERS JOHN DOE 1-10 were employees of the New York City Police Department, acting in their capacity as police officers or lieutenants and under color of law. POLICE OFFICER JUSTIN QUINTERO AND POLICE OFFICERS JOHN DOE 1-10 were working for the 48th precinct on April 24, 2017.
4. POLICE OFFICER JUSTIN QUINTERO shield number is 13526 as of April 24, 2017.
5. That all acts and incidents complained of herein occurred in Bronx County, City, and State of New York.
6. That within 90 days after the state law claim of, *inter alia*. Malicious prosecution accrued, plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.
7. That plaintiff appeared for a hearing pursuant to § 50-H of the General Municipal Law on or about July 10, 2019.
8. That the defendants have not adjusted, settled or paid the same.

9. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York State law claims are based.
10. That all conditions and requirements precedent to the commencement of this action have been complied with.
11. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR § 1601, by reason of the fact that defendants owe plaintiff a non-delegable duty of care.
12. Pursuant to CPLR § 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR § 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.
13. Pursuant to CPLR § 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR § 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

14. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

15. On April 24, 2017, two young men attacked and robbed Gregory Cantey as he approached a building to visit his daughter. Mr. Cantey then gave chase to the individuals as they made their way towards a nearby school across the street.

16. As Mr. Cantey approached the school property, a security officer stopped him and refused to allow Mr. Cantey to proceed any further. Mr. Cantey tried to explain to the security officer that two individuals that entered the school property stole his property. However, the security officer would not allow Mr. Cantey to explain and instead pushed and slammed Mr. Cantey to the ground.

17. At some point during this altercation, police officer Justin Quintero and another unidentified officer arrived at East 179th St. Honeywell Ave. in their patrol car. The officers can reasonably be described as wearing their officer uniforms with their badges on, guns on their waist and their body cameras on their chest.

18. Shortly thereafter, additional unidentified officers arrived on the scene. Mr. Cantey was no longer within the confines of the school perimeter and was not on the school's

property when the officers used unreasonable and unnecessary force without justification.

Without provocation, Mr. Cantey was tased by one of the officers and subsequently attacked by all of the officers on the scene. Mr. Cantey received blows to his body by the officers striking him with their elbows, knees, and throwing their body weight on him. As a result of the attack, Mr. Cantey received injuries, such as scrapes and bruises, to his neck, back, legs, and arms and was transported to the hospital by an ambulance to treat his injuries. Thereafter, Mr. Cantey was booked and charged at the precinct.

19. Plaintiff was maliciously prosecuted by and at the direction of Officer Justin Quintero as well as other agents, servants and/or employees of the City of New York.

20. Thereafter, claimant was charged under Docket # 2017BX017096, for, *inter alia*, P.L. §120.00(1), P.L. §205.30, P.L. §195.05, P.L. §121.11(a), and P.L. §240.26(1) each of which are class A misdemeanors, with the exception of P.L. §240.26(1), which is a violation.

21. Plaintiff was then incarcerated for approximately four to five days before he made bail and was released.

22. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrences and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

23. These charges against plaintiff were based entirely on the false allegations and fabrications by DEFENDANTS QUINTERO AND JOHN DOES 1-10. The Defendants claim that Mr. Cantey refused to cooperate and resisted arrest. However, within seconds of arriving on the scene, the officers tased and attacked Mr. Cantey using unreasonable and unnecessary force.
24. All criminal charges against plaintiff relating to this arrest were dismissed approximately a year and a half from the date of arraignment as Mr. Cantey was acquitted of all charges.
25. Plaintiff was acting lawfully when he was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including but not limited to, upon information and belief, agents employed by the New York City Police Department.
26. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.
27. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.
28. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.
29. As a result of the defendants' conduct, plaintiff has been caused to suffer, inter alia, severe anxiety, humiliation, and embarrassment, damage to personal reputation,

apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

FIRST CLAIM:

FALSE ARREST UNDER STATE AND FEDERAL LAW

30. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
31. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority of the NEW YORK CITY POLICE DEPARTMENT and its agents, servants and employees, and is liable to plaintiffs for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.
32. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.
33. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
34. At the aforementioned times and locations, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers

while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested the plaintiff without warrant, authority of law or probable cause therefore.

35. That the acts and conduct on the part of the individual defendants constituting the false arrest consisted in part of the following: unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully arresting plaintiff and placing him in handcuffs without reasonable cause therefore, and committing such acts resulting in the unlawful arrest of plaintiff.
36. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
37. That plaintiff was conscious of the confinement.
38. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.
39. By the actions described above, the individual and municipal defendants caused plaintiff to be falsely arrested and/or falsely imprisoned plaintiff without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any authority to do so. The acts and conduct of the defendants were the direct and proximate cause of

injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitution of the State of New York.

40. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and standing within their community.

41. As a result of defendants' impermissible conduct, plaintiff demand judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM:

MALICIOUS PROSECUTION UNDER STATE AND FEDERAL LAW

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. At the aforementioned times and locations, plaintiff was detained and held under the imprisonment and control of the defendants and other unidentified officers of the NYPD present on the scene without probable cause.

44. Police Officer Justin Quintero falsely claimed Mr. Cantey pushed him when attempting to arrest Mr. Cantey and that Mr. Cantey flailed his arms and legs and attempted to bite him to prevent being handcuffed. Directly flowing from that fabrication, defendants commenced the criminal action against plaintiff in the absence of any probable cause that a crime had been committed.

45. Defendants commenced this criminal action out of malice.

46. The criminal action against plaintiff has terminated in his favor.
47. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
48. That plaintiff was conscious of the confinement.
49. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.
50. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitution of the State of New York and of the United States.
51. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and standing within their community.

THIRD CLAIM:

EXCESSIVE FORCE UNDER FEDERAL LAW

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
53. In detaining Plaintiff, DEFENDANTS used force.

54. The force used was unreasonable and excessive.

55. As a result of the unreasonable and excessive force, Plaintiff suffered injuries and substantial pain.

56. DEFENDANTS' use of force was a substantial factor in causing the harm to Plaintiff.

57. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

FOURTH CLAIM:

FAILURE TO INTERVENE UNDER FEDERAL LAW

58. Plaintiff repeats and re-alleges each and every allegation as if fully set forth herein.

59. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, had a duty to intervene and prevent such conduct and failed to intervene.

60. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

61. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM:**NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
63. The DEFENDANT, CITY OF NEW YORK, including but not limited to DEFENDANTS POLICE OFFICER JUSTIN QUINTERO AND JOHN DOES 1-10, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.
64. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.
65. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
66. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, mental shock, mental anguish, anxiety, fear, humiliation, loss of freedom, psychological trauma and damage to his reputation and his standing within his community.
67. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

SIXTH CLAIM:**NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION,
AND TRAINING OF DEFENDENTS UNDER STATE LAW**

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
69. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
70. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

SEVENTH CLAIM:**FABRICATION OF EVIDENCE**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
72. At the time of the plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime. Police Officer Quintero falsely claimed Mr. Cantey pushed him when attempting to arrest Mr. Cantey and falsely claimed that Mr. Cantey flailed his arms and legs and attempted to bite him to prevent being handcuffed. Directly flowing from that

fabrication, defendants commenced the criminal action against plaintiff in the absence of any probable cause that a crime had been committed.

73. The acts and conduct of the defendants were the direct and proximate cause of plaintiff's arrest and injury to the plaintiff, and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual defendants and their agents, servants, and employees, were carried out under the color of state law.

75. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

EIGHTH CLAIM:

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. At the time of the plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime.

78. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual defendants and their agents, servants, and employees, were carried out under the color of state law.

79. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
80. The acts complained of were carried out by the aforementioned individual defendants and other unidentified officers of the NYPD present on the scene, in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.
81. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to their customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, under supervision of ranking officers of said department.
82. The individual defendants, and defendant CITY OF NEW YORK, collectively and individually, while acting under color of state law, engaged in Constitutionally impermissible conduct that constituted a custom usage practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
83. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

NINTH CLAIM:**VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE PROCESS OF
LAW UNDER 42 U.S.C. § 1983**

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

85. DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

86. The individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

87. At all times DEFENDANTS were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

88. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

TENTH CLAIM:**ASSAULT AND BATTERY UNDER STATE LAW**

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
90. That, on or about April 24, 2017, DEFENDANTS, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.
91. That, on or about April 24, 2017, DEFENDANTS committed an assault and battery knowingly, intentionally and willfully.
92. That, on or about April 24, 2017, the individual DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK.
93. That on or about April 24, 2017, the assault and battery on the Plaintiff was without probable cause and was not the result of a lawful arrest.
94. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

DAMAGES

95. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution and under the laws of New York.
96. This action seeks damages from on or prior to April 24, 2017 through the present.
97. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.
98. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.
99. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 30, 2020

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
GREGORY CANTEY
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002
LORD@NYCIVILRIGHTS.NYC

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff GREGORY CANTEY. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
April 30, 2020



MASAI I. LORD
Counsel for Plaintiff